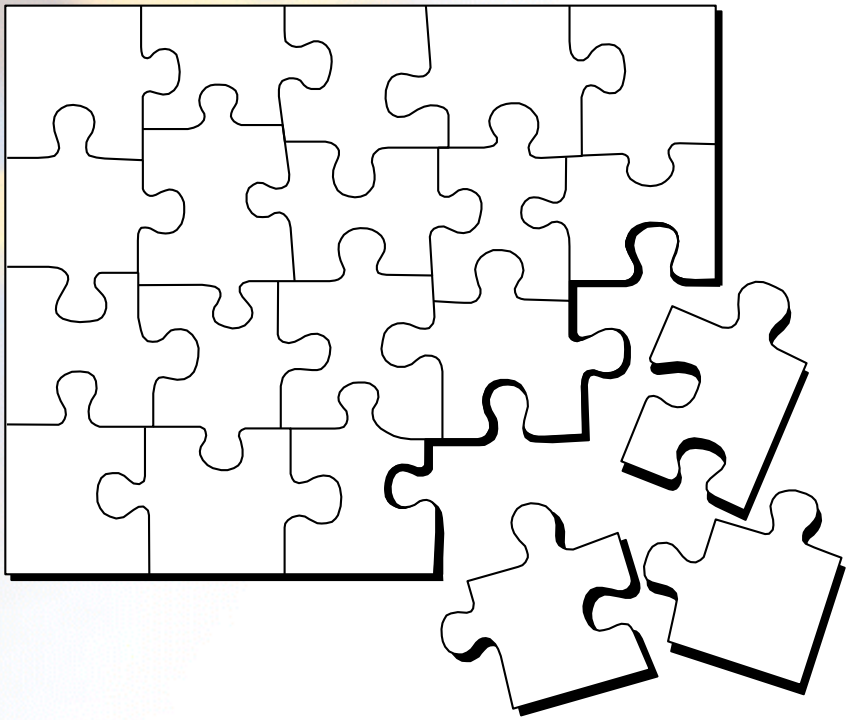
2022 PRE-CONVENTION WORKSHOP

BUILDING MAINTENANCE STAFFING

UNDERSTANDING THE MS-1/TL-6



PRESENTED BY

Maintenance National Business Agents

Curtis Walker Central Region
Dave Sarnacki Northeast Region



HISTORY OF THE MS-1

The Maintenance Series 1 Handbook

Operations and Maintenance of Real Property

First published in 1975 to provide guidelines for “fulfilling the building management function in postal facilities”

Handbook was revised three times since 1975 inception, resulting in the long established 1986 TL-4 MS-1 Handbook.

In 2012 USPS HQ Maintenance Operations forms team to perform comprehensive review of MS-1

Team focused on Chapter 13 Staffing “Staffing Requirements”

Review resulted in draft May 2014 TL-5 MS-1 Handbook

2014 APWU files National dispute

June 2016 After 2 years of debate between parties APWU finally presented official version of TL-5 Handbook

September 2017 Arbitrator Goldberg issues MS-1 Award

Finds that the Postal Service did not violate Article 34 with its proposed changes nor Article 19 with granting local management additional discretion on transferring work to FMO for stations and branches.

Part four of the award generally granted the APWU's position with a significant caveat:

"The issues of whether the revisions to the MS-1 dealing with (a) preventive maintenance time allowances and frequencies, and (b) space adjustments and miscellaneous work time allowances violated Article 19 are remanded to the parties."

This caveat left the TL-4 the effective handbook while the parties met on the remanded issues.

December 10, 2018 USPS sends APWU notification of proposed draft of **TL-6** MS-1 Handbook

August 8, 2019 Step 4 Agreement on MS-1 Revisions and Related Maintenance Management Orders.

The August 8, 2019 Step 4 required it to be the publish date of the final version of the TL-6 handbook.

These remand discussions ultimately resulted in the February 27, 2018 and August 8, 2019 MS-1 Settlement Agreements that agreed on the following work hour allowances to be incorporated in the MS-1/TL-6 and its related MMO's:

1. The percentage of time allocated for Miscellaneous Work Hours, which includes Space Adjustments, will be 8% and applied to the Preventative Maintenance 4896 and 4896A (columns C and D on the 4893).
2. Corrective Maintenance / Miscellaneous (column H on the 4893) is calculated at 8 hours per 1000 square feet.
3. The Preventative Maintenance time allowances and frequencies discussed and mutually agreed upon by the parties.

AUGUST 8 2019 STEP 4
Implements TL-6 Version of MS-1

The Step 4 provides that the MS-1/**TL-5** was never published

Important, as the Service reverted numerous Building side duty assignments across the country based on future or anticipated TL-5 staffing packages



Article 38.4.A.3 requires reversions be based on "current" approved staffing packages not anticipated or future staffing packages

ARTICLE 38.4.A.3

If the current approved staffing package no longer supports continuation of a vacant duty assignment(s) that duty assignment may be reverted, provided it is not being withheld. The Union will be notified within ten (10) days advising of the date of the reversion(s) and the reasons therefor.

Persuasive Awards

Arbitrator Harry N Maclean E10T-1E-C 13150976

This unambiguous language prohibits the Service from relying on a proposed or future staffing package to support a reversion

In the Arbitrator's view, the Union's position is sound and must be upheld. An Arbitrator is bound to apply the plain meaning of the contract language. Here, the key words are "current" and "approved." For a staffing package to support a reversion, it must be both approved and current. That can only refer to the package in effect at the time of the reversion. To hold otherwise would render the language meaningless…..

A proposed or anticipated staffing package is one not yet in existence. It has not been *approved* and is not *current.* Therefor, under the clear language of the contract, the Service improperly relied on it in reverting the position.

Arbitrator Christopher Miles C00T-1C-C 03034905

Also, the claim that a current and accurate staffing package is in the process is speculative and as it turned out, the new staffing package was not completed for three years in 2005 and it still authorized 11 MPE positions in Akron. Arbitrator Carl C. Bosland, 6 in a case decided in 2005, determined that the failure to fill a vacant position pending approval of a staffing package is an impermissible basis to justify a decision to revert a position. He made reference to other arbitrators who reached the same conclusion. See USPS and APWU (Columbia, MO), No. 190T-1L-C 93036556, (Benn, May 20, 1995); USPS and APWU ("Greenville, SC), No. C98T1C-C 99272831 (Plant, April 13, 2004); USPS and APWU (St. Paul BMC), No. 190T-1L-C 96024903 (Fletcher, May 14, 1999). Thus, in view of the above, it is my opinion that the notice to revert the MPE-7 position was speculative and arbitrary and capricious. As the result, it is found that Article 38, Section 4.A.3 of the Agreement was violated. As the remedy, the Postal Service is directed to post and fill the MPE position in question if it has not already done so. In addition, any adversely affected employee shall be made whole.

The August 8, 2019 TL-6 Step 4 afforded protection to building side employees in stations and branches

Maintenance work in stations and branches transitioning to Field Maintenance Operations (FMO) as a result of the MS-1/TL-6 will continue to be performed by employees currently performing those duties until adjustments occur resulting from attrition. When attrition at the installation results in a staffing level below the authorized complement, management may determine the occupational group of the employee(s) that will continue to perform the work in the stations and branches.

Step 4 Provided for FMO Staffing Gains

The parties agree that due to the transferring of maintenance work of stations and branches from plant maintenance to FMO, the FMO authorized staffing may increase in order to provide maintenance for the stations and branches. For FMO staffing increases that exceed the available plant LDC 37 positions that were providing maintenance for the stations and branches within the FMO coverage area, those positions shall be posted and filled under the FMO in accordance with Article 38 and the Joint Contract Interpretation Manual (JCIM).

MS-45 Field Maintenance Program

Governs FMO Staffing

Area Maintenance Technicians*
Building Maintenance Custodians

*Area Maintenance Specialists Occ Group was eliminated with 2022 CBA Jobs Consolidation MOU Agreement

MS-45 Staffing

322.2 Building Maintenance - Handbook MS-1, Operation and Maintenance of Real Property may be used as a general guide for determining maintenance tasks related to the physical plant.

- FMO hours are earned using “Historical Data”
- Travel time is included and needs to be properly documented
- BEMS and MMs covered though August 2019 MS-1 MOU must be added to history for staffing purposes until attrition
- Letterbox Mechanics must be added per Job Consolidation MOU

SENIOR POSTAL OFFICIAL

This term is used in the MS-1 and MMOs to identify the person responsible for ensuring building side work is completed.

This does not mean this person completes the work. This work is Bargaining Unit work that must be completed by our BEMs, AMTs and BMCs.

MAINTENANCE STAFFING
LABOR DISTRIBUTION CODES

- LDC 36 Postal Operating Equipment (eWHEP)
- LDC 37 Building Systems Equipment (MS-1)
- LDC 38 Building Services (Custodial) (MS-47)

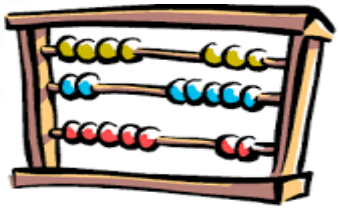
NEW TL-6 MS-1 CHALLENGES

The TL-6 is an MMO driven handbook. The TL-6 does not mention any of the requisite staffing forms needed to complete a staffing package.

Significant TL-6 MS-1 Staffing Calculations

TL-6 staffing calculations utilize MMOs rather than the standard TL-4 appendix

Important to use the most current MMO when reviewing calculations.

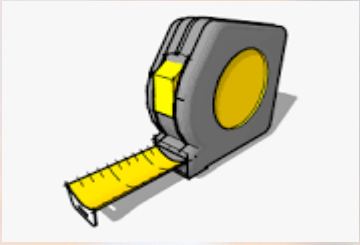


MS-1 Staffing Packages

Can be performed manually by completing forms (PS Forms 4893, 4894, 4895, 4896, 4896A)

Most commonly performed using eWHEP

- *If eWHEP is used the pages will still reflect the form numbers*



MEASUREMENTS

- Accurate Gross Interior Measurements of all structures that comprise the facility is the first step/requirement for proper MS-1 staffing

- All structures include not only the plant, but tool sheds, salt sheds, guard shacks, garages, etc.



APPENDIX A
DEFINITIONS AND METHODS FOR COMPUTING BUILDING AREAS

A.2 GROSS AREA

Gross area is the sum of the floor areas to the normal outside faces of the exterior walls, disregarding architecture setbacks or projections. This includes all stories or areas that have floor surfaces.

Compute gross area by measuring from the normal outside face of the exterior walls, disregarding cornices, pilasters, and buttresses that extend beyond the wall face. Gross area also includes basements (except un-excavated portions), attics, garages, roofed porches, mezzanines, shipping platforms, penthouses, lobbies, corridors, and mechanical rooms provided they are within the normal face lines of the building. Since post office mailing platforms are always included in net assignable area, they must be included in gross area, regardless of whether they are within or outside the exterior wall lines of the building.

The gross area does not include open courts, lightwells, or upper portions of rooms or lobbies that rise above the story being measured or extend beyond the principal exterior walls of the building.

Do not include features that are not roofed, such as cooling towers, in the gross area.

PS FORM 4893

ANNUAL BUILDING EQUIPMENT AND PREVENTIVE MAINTENANCE WORKHOUR SUMMARY

- The 4893 is the MS-1 equivalent to the MS-47s 4852
- Similar to the 4852 the Gross Interior Square Footage is found on top right side of the 4893
- Form contains lines A-I
- Lines C-G are for form inputs (4894, 4895, 4896,4896A)
- Line H is corrective maintenance calculation based on square footage
- Total Workhours (Equivalent to MS-47 Line H)
- FTE (Full Time Equivalents)

U.S POSTAL SERVICE ANNUAL BUILDING EQUIPMENT OPERATIONAL AND PREVENTIVE MAINTENANCE WORKHOUR SUMMARY	MANCHESTER NH PDC 955 GOFFS FALLS ROAD MANCHESTER, NH 03103-9997	BUILDING(s): MHT PDC, MHT WAREHOUSE, MHT VMF	GROSS INTERIOR SQFT: 283,303.62	DATE: 2/19/2019 PREPARED BY: Palangas, Nicholas

LINE NO.	WORK DESCRIPTION	PREVENTIVE MAINTENANCE		OPERATIONAL MAINTENANCE			CORRECTIVE MAINTENANCE	TOTAL ANNUAL WORKHOURS
		4896A	4896	4894	4895	4896		
A	B	C	D	E	F	G	H	I
1	HVAC	671.30	74.40	0	270.00	0		1,015.70
2	ELEC	17.00	0	283.05	0	0		300.05
3	PLUM	126.00	7.00	0	0	0		133.00
4	EMS	22.80	13.00	197.69	0	0		233.49
5	MISC	479.90	36.00	0	0	492.75		1,008.65
6	SUBTOTALS	1,317.00	130.40	480.75	270.00	492.75		2,690.90
7	CORRECTIVE / MISC	105.36 *	10.43 *				2,266.43 **	2,382.22
	TOTAL WORKHOURS							5,073.12
	TOTAL FTE							2.88

* 8% of the Subtotal
** 8 Hours per 1000 Gross Interior SQFT

SUBMITTED BY: Palangas, Nicholas DATE: 2/19/2019

APPROVED BY: Lively, Michael DATE: 2/25/2019

CORRECTIVE MAINTENANCE

Allots 8 hours per 1000 Gross Interior Square feet

T	GROSS INTERIOR SQFT: 283,303.62	DATE: 2/19/2019 PREPARED BY: Palangas, Nicholas

AL MAINTENANCE		CORRECTIVE MAINTENANCE	TOTAL ANNUAL WORKHOURS
4895	4896		
F	G	H	I
270.00	0		1,015.70
0	0		300.05
0	0		133.00
0	0		233.49
0	492.75		1,008.65
270.00	492.75		2,690.90
		2,266.43 **	2,382.22
			5,073.12
			2.88

* 8% of the Subtotal

** 8 Hours per 1000 Gross Interior SQFT

Manchester Corrective Maintenance Calculation

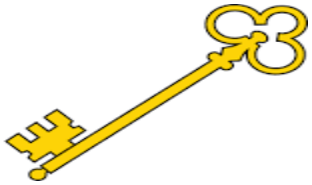
283,303.62 sq ft ÷ 1,000 sq ft X 8 hours = 2,266.43

ALL MAINTENANCE STAFFING PACKAGES Full Time Duty Assignments Based on **1752** Hours

With the Advent of the Juneteenth Federal Holiday maintenance staffing is now determined based on 1752 hours*

*Formerly 1760 Hours

Inventory



Proper Inventory is the critical key to success for all accurate staffing packages

Incumbent on the Local to ensure proper inventory*

** Latest Equipment & Category Guide Provided as a separate attachment*

MS-1 TL-6 INVENTORIES

No form or format for building inventories

Without uniform inventories leads to the inherent problem of items being left off inventories

The Union should request to observe and participate in building inventories when possible

The Union should ensure all items that were formally on TL-4 packages are on current packages even if items not identified in the TL-6

(TL-4) PS FORM 4897

The TL-4 utilized a form 4897 to document building side inventory. This form ceased to exist under the TL-6.

Former TL-4 staffing packages are a valuable tool to help establish a baseline staffing.

Allows for an “Apples to Apples”



What about inventory unique to the facility?

This is recorded on the:

PS Form 4893B – Annual Building Equipment Override and Supplemental Maintenance Justification

PS Form 4893B – Annual Building Equipment Override and Supplemental Maintenance Justification

This form must be completed to override the minimum staffing in a facility

Area has historically denied requests made via the 4893B

Typically used for equipment that requires additional work hours due to specific requirements

PS Form 4894, – Annual Standard Requirement Building Operational Maintenance

Used to document work hours in a facility for all equipment identified in MMO 100-18

Important to ensure this work is annotated using the guidelines found in the correct matrix from the MMO.

PS Form 4895 – Annual Workhour Requirement for Central Chill Water Plant Operational Maintenance

Used to document work hour requirements for Chiller Towers

Hours identified in MMO 100-18

PS Form 4896 – Annual Supplemental Requirement for Building Preventive and Operational Maintenance

Used for equipment that is specific to the facility or having varying manufactures specifications

Examples- Automatic roll up doors and window air conditioners

PS Form 4896A – Annual Standard Requirement Building Preventive Maintenance

- Utilized to annotate work hours for equipment normally found in a facility
- This form provides frequencies and work hour per frequencies
- The accuracy of work hours on this form is paticularily vulnerable to an inaccurate inventory

FORM TOTAL WORKHOURS

The workhours from each requisite form are then transposed onto the 4893 comprising total workhours

(Total workhours are the equivalent of Line H on the 4852)

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SUBMITTED BY: Palangas, Nicholas DATE: 2/19/2019

APPROVED BY: Lively, Michael DATE: 2/25/2019

2021 Maintenance Position/Job Description Consolidation/Elimination MOU

The parties agree that the duties and responsibilities of the job descriptions that have been elimination are hereby considered incorporated into the reclassified position description. The Local Union may request verification that the work hours have been transferred to the respective staffing package for the positions to which the eliminated jobs are being upgraded and/or reclassified.

REQUESTS FOR INFORMATION

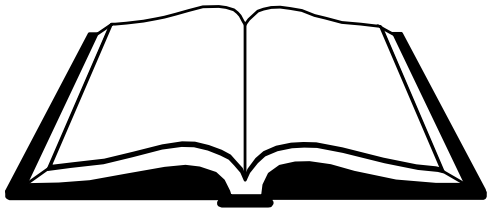
- Complete Approved Staffing package (All Forms)
- Copy of staffing package submitted for approval
- Copy of Previous staffing package
- Verification of transferred workhours for eliminated jobs from Consolidation MOU

The Building Staffing Grievance

Investigating and Processing a Successful Grievance

Information Necessary to Defend Staffing

- Know the MS-1 Requirements
- Know the MS-1 MMOs
- Request the Evidence
  - Routes being Bypassed
  - Routes being Suspended
  - Make management prove the work in the MS-1 is being performed
  - Failure to provide information related to the work performance can be used against them in arbitration




The End